Complaint is **vacated**. Plaintiff Victoria Plumlee dismissed her action against Defendant with prejudice on May 5, 2026. The Notice of Entry of Dismissal was filed on May 7, 2026. No appearance is required at the hearing on July 8, 2026.

8. 9:00 AM CASE NUMBER: C24-01053
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ABDULLAH TALEB
HEARING ON SUMMARY MOTION FILED BY PLAINTIFF, JPMORGAN CHASE BANK
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff JPMorgan Chase Bank, N.A.'s Motion for Summary Judgment or, in the Alternative, Summary Adjudication as against Defendant Abdullah M. Taleb.

For the following reasons, Plaintiff's Motion for Summary Judgment is **granted**.

Factual Background

This matter pertains to the alleged default in making payments on a loan made by Plaintiff to Defendant RCS Brokering, Inc. and guaranteed by Defendant Abdullah M. Taleb.

On January 20, 2022, Plaintiff JPMorgan Chase Bank, N.A. ("Chase") made a line of credit loan to Defendant RCS Brokering Inc. in the amount of $400,000 (the "Loan"). (UMF 1-3) The Line of Credit Note ("Note") evidencing the Loan was signed by Defendant Abdullah Taleb as President of RCS Brokering, Inc. (UMF 2, Escobar Decl. Ex. 1.) Mr. Taleb also signed a Continuing Guaranty ("Guaranty") wherein he personally agreed to "pay the Liabilities" in the event of a default on the Loan. (UMF 5, Escobar Decl. Ex. 2.) Pursuant to the Guaranty Defendant Taleb agreed to pay not only the Liabilities "but will also reimburse the Bank for any fees, charges, costs and expenses, including reasonable attorneys' fees … and court costs, that the Bank may pay in collecting from the Borrower or the Guarantor…." (UMF 6, Escobar Decl. Ex. 2.)

Under the Note, RCS was required to make monthly payments of "[a]ccrued interest or $100.00, whichever is greater … beginning on February 20, 2022…." (UMF 7.) The Account Transaction History ("History") indicates that the full amount of the Loan – *i.e.* $400,000 – was advanced and outstanding as of January 31, 2022. (Escobar Decl. Ex. 3.) The History shows payments made on the Loan through at least November 2023. (*Ibid.*) In December 2023, RCS stopped making payments on the Loan thereby defaulting. (UMF 8.)

In the event of a default Chase was entitled to declare the Loan to be "immediately due and payable." (UMF 9.) The Guaranty provides that in the event of a default by RCS, Mr. Taleb shall pay any and all amounts due under the Loan. (UMF 10.) On February 8, 2024, Chase sent notice of the default to both RCS and Mr. Taleb. (UMF 11-12.) The default has not been cured. (UMF 13.)

The Loan was guaranteed in part by the Small Business Administration ("SBA"). (UMF 20.) After RCS's default, the SBA honored the guarantee and paid to Chase $179,5991.87. (*Ibid.*) That amount was applied to the Loan on November 19, 2024. (*Ibid.*) Pursuant to the Note and Guaranty, RCS and Mr. Taleb's "liability under the Note will continue with respect to any amounts SBA may pay Bank based on an SBA guarantee of this Note." (UMF 21; Escobar Decl. Ex. 1 at p.3.) As such, RCS and Mr. Taleb are still responsible for the entire indebtedness under the Note. (*Ibid.*)

As of March 26, 2024, the amount outstanding and due and owing under the Note is $353,269.13, along with accrued interest of $16,270.32, and late fees and costs in the amount of $661.87. (UMF 15.) Chase has also incurred $6,052.01 in attorneys' fees and $1,430.17 in costs in attempting to recovered the amounts due and owing. (UMF 16.) These amounts are also available to Chase pursuant to the Note and Guaranty. (*Ibid.*) In total, Chase seeks an award of $377,683.50. (UMF 21.)

<u>Standard</u>

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the ranting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid*.; *see also Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; *if* he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.)

<u>Initial Considerations</u>

Separate Statement

Plaintiff's Opposition to Chase's Separate Statement is deficient on several fronts. First, the opposition separate statement must be in a two-column format wherein the first column sets out the moving party's undisputed facts set out "verbatim on the left side of the page, ***below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits***." (Cal. R. Ct. 3.1350 (f)(1).) While the opposition separate statement includes Chase's undisputed facts, it fails to set forth the evidence Chase cited in support thereof. The failure to include this information not only violates Rule 3.1350 but also makes the Court's work significantly more time consuming.

Second, on the right side the opposing party must "unequivocally state whether that fact is 'disputed' or 'undisputed.'" (Cal. R. Ct. 3.1350(f)(2).) "An opposing party who contends that a fact is disputed ***must*** state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and ***describe the evidence that supports the position that the fact is controverted.***" (*Ibid.* emphasis added.) "Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (*Ibid.*)

While Plaintiff's opposition separate statement does indicate when facts are 'disputed' or 'undisputed,' it fails to cite any evidence to support his position when that the fact is 'disputed.'

Third, if the opposing party "contends that additional material facts are pertinent to the disposition of the motion, those facts ***must be set forth in the separate statement.***" (Cal. R. Ct. 3.1350(f)(3).) Instead of including them in the separate statement, Plaintiff filed a separate document of 'additional material facts.' While having a separate document is a minor concern, the separate statement is also supposed to be in the two-column format and "[e]ach fact ***must be followed by the evidence*** that establishes the fact." (*Ibid.*) Plaintiffs additional material facts are not in the two-column format and do not cite any evidence.

"The separate statement 'provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.'" (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (*quoting Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74.) "[T]rial courts have the inherent power to strike proposed 'undisputed facts' that fail to comply with statutory requirements and that are formulated so as to impede rather than aid an orderly determination whether the case presents triable material issues of fact." *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106.)

Analysis

Chase's complaint includes a single cause of action for breach of contract – *i.e.* the Guaranty – against Defendant Talib. "The standard elements of a claim for breach of contract are '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

In an action such as this wherein the breach relates to a loan guarantee, the Bank is required to prove "the following elements: (1) the guarantor guaranteed payment of a third party's indebtedness to the bank; (2) the third party defaulted on its loans to the bank; (3) the bank notified the guarantor of the default and demanded payment; and (4) the guarantor did not make payment to the bank." (*Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal.App.4th 1532, 1546-47.)

Chase presents evidence of the Loan, including the signed Note and Guaranty. Chase performed by providing Defendant RCS with the $400,000 available under the Loan, as evidenced by the Account History. While under the terms of the Note and Guaranty Mr. Taleb waived the right to receive notice of RCS's default (UMF 19), Chase sent notice of the default to both Mr. Taleb and RCS on February 8, 2024. The Account History and Ms. Escobar's declaration show that RCS stopped making payments by December 2023 – thereby defaulting on the terms of the Loan.

"A guaranty is unconditional unless its terms import some condition precedent to the liability of the guarantor." (*Bank of America National Trust & Savings Assn.* (81 Cal.App.2d 1, 7.) Here, the Guaranty does not provide for any conditions precedent. As such, there are no conditions precedent and Mr. Taleb was liable for fulfilling his obligations as Guarantor when RCS defaulted.

Chase presents evidence that RCS failed to make payments under the Loan beginning in December 2023. To date, there is no evidence that RCS or Mr. Taleb have remedied the default. As such, Mr. Taleb is in default under the terms of the Guaranty.

Chase presents evidence, outlined above, which shows that the amount due and owing totals $377,683.50. (UMF 21.)

Based on the above, Plaintiff Chase has met its initial burden to show that there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. As such, the burden shifts to Defendant Mr. Taleb to make its own prima facie showing of the existence of a triable issue of material fact. (*Aguilar*, supra, 25 Cal.4th at 845.)

<u>Opposition</u>

Initially, as outlined above, Plaintiff has failed to properly dispute any of Plaintiff's material facts by failing to cite any evidence in support of his position. Plaintiff instead appears to argue that Defendant has failed to meet its initial burden by arguing that there are 'triable issues of fact' related to the Loan, the amounts due under the Loan, and the notice provided regarding the default.

As stated below, Defendant's objections to Plaintiff's evidence are overruled. Plaintiff has sufficiently authenticated the Bank's records via the declaration of its employee – Veronica Escobar, Special Credits Analyst I – who makes clear that her declaration is based on her "personal knowledge and [her] review of Chase's business records…." (Escobar Decl. ¶ 1.) She also declares that her job duties being responsible for managing the Loan. (*Id.* ¶ 2.) The records she reviewed were "created and maintained by Chase in the course of its regularly conducted business activities and were made at or near the time of the occurrence of the events they reflect, by or from information transmitted by a person with knowledge." (*Ibid.*)

"The business records exception requires a foundational showing that (1) the writing was made in the regular course of business; (2) at or near the time of the act, condition, or event; (3) the custodian or other qualified witness testifies to its identity and mode of preparation; and (4) the sources of information and mode and method and time of preparation indicate trustworthiness." (*Conservatorship of S.A.* (2018) 25 Cal.App.5th 438, 447.) "These requirements may be satisfied by affidavit." (*Ibid.*) The rule permits "any 'qualified witness' to establish [] the conditions of admissibility." (*Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 322.)

The evidence submitted by Chase sufficiently evidences the Loan and the payments (and lack of payments) thereunder.

Defendant also argues that there is a dispute as to the amount owed due in part to the payment made by the SBA. He argues that the fact there was such a payment "creates material factual disputes regarding whether the loan balance was properly reduced, whether all payments were credited correctly, and whether Plaintiff seeks an improper double recovery." (Opp. at 2:26-3:3.)

Chase addresses this issue in its opening papers. It explains that the Note specifically indicates that the Loan is guaranteed by the SBA, but that the Borrower "acknowledges and agrees that the Borrower's liability under this Note will continue with respect to any amounts SBA may pay Bank based on an SBA guarantee of this Note." It goes on to state:

> "Any agreement with Bank under which SBA may guarantee this Note does not create any third party rights or benefits for the Borrower and, if SBA pays Bank under such

> an agreement, SBA or Bank may then seek recovery from the Borrower of amounts paid by SBA."

The Guaranty includes similar language. It also includes language confirming that "SBA is not a co-guarantor with [Taleb] and [Taleb] has no right of contribution from SBA." This language makes clear that Defendant is still liable to Chase for the full amount of the Loan. If the Bank, however, recovers from Defendant it is then obliged to reimburse SBA for the amounts received.

Defendant also argues that he asserts several affirmative defenses and "Plaintiff has not presented evidence negating these defenses." (Opp. at 3:23-25.) Defendant misunderstands that shifting burdens on a summary judgment motion. As the Code makes clear, a plaintiff has met its burden "of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c(p)(1). Once this has occurred, "the burden shifts to the defendant … to show that a triable issue of one or more material facts exists as to the cause of action ***or a defense thereto***." (*Ibid.* emphasis added.) To meet this burden, the defendant "***shall*** set forth the specific facts showing that a triable issue of material facts exists as to the … defense thereto." (*Ibid.*)

Defendant provides no evidence, nor any substantive legal argument, regarding any of its alleged affirmative defenses. The only 'evidence' that Defendant submits is his declaration. That declaration, however, does not provide any admissible facts to support any of Defendant's arguments. It merely states that he "disputes" a several of Plaintiff's facts but does not provide any facts to support his position. In addition, as Chase points out in reply, none of the affirmative defenses listed in Defendant's opposition were actually pled in his Answer. "An affirmative defense must be alleged in the answer, or it is waived." (*Green v. Healthcare Services, Inc.* (2021) 68 Cal.App.5th 407, 415.)

"Only *admissible evidence* is liberally construed in deciding whether there is a triable issue." (*Fernandez v. Alexander* (2019) 31 Cal.App.5th 770, 779 italics in original.) "[R]esponsive evidence that gives rise to no more than mere speculation cannot be regarded as substantial and is insufficient to establish a triable issue of material fact." (*Sangster v. Paetkau* (1998) 67 Cal.App.4th 151, 163.)

Defendant has failed to meet its burden to show there is a triable issue of material fact.

Evidentiary Issues

Plaintiff's Objections:

"Each objection must be numbered consecutively …." (Cal. R. Ct. 3.1354(b).) Plaintiff fails to number their objections. The Court will reference them in the order presented, i.e. objection 1 refers to the first objection stated, etc.

Objection 1: Overruled.
Objection 2: Overruled.
Objection 3: Overruled.
Objection 4: Overruled.
Objection 5: Overruled.
Objection 6: Overruled.
Objection 7: Overruled.
Objection 8: Overruled.
Objection 9: Overruled.
Objection 10: Overruled.

Conclusion

Based on the above, Plaintiff's Motion for Summary Judgment against Defendant Taleb is **granted**. Plaintiff is entitled to an award of $377,683.50 against Defendant Taleb.

9. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
HEARING ON MOTION IN RE: ORDER SETTING ASIDE DEFAULT RE: AURIN CANSON
FILED BY: CANSON, AURIN
TENTATIVE RULING:
Summary

Defendant Aurin Canson moves to set aside the default entered against him pursuant to Code of Civil Procedure § 473 (b). The motion is **granted**. Defendant has leave to file his answer (a proposed copy of which is attached as an exhibit to the Amended Notice of Motion) on or before July 20, 2026, as discussed below.

If the answer is not filed by that date, plaintiff may file a declaration as to that fact and the Court will set aside this ruling, leaving the default in place, and calendar a prove up hearing.

Background

Plaintiff obtained permission to serve Aurin Canson by publication and completed such service on August 28, 2025. Plaintiff filed proof on September 5, 2025. The Court clerk entered Canson's default on October 29, 2025. Although a default judgment was requested on December , and although various declarations were submitted, no judgment against Canson has been entered at this time.

On April 23, 2026, Canson filed this motion to set aside his default. In support of the motion, he declares that he was not aware of the case or that his default had been taken until December of 2025.

The opposition contends Canson waited an unreasonably long time to seek relief from default, and that his request should therefore be denied. The opposition contends Canson is being misled and taken advantage of by his "fraudster-forger-felon" attorneys. Plaintiff also argues Canson had constructive notice of this suit because his co-defendants were representing him in other matters.

Standard

Code of Civil Procedure, § 473 (b) states, in relevant part,

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

Code of Civil Procedure section 473 is a remedial statute to be "applied liberally" in favor of relief if the opposing party will not suffer prejudice. The law strongly favors trial and disposition on